



Federal Communications Commission
Washington, DC 20554

March 27, 2026

VIA ELECTRONIC MAIL

Mr. Nickolai Bakken
200 104th Ave
Treasure Island, FL 33706
nickolai.bakken@gmail.com

Re: FOIA Control Nos. 2026-000479
2026-000480
2026-000481

Mr. Bakken:

This letter responds to your requests for fee waivers associated with Freedom of Information Act (FOIA) Control Nos. 2026-000479, 2026-000480, and 2026-000481 (“Requests”) filed with the Federal Communications Commission (FCC or Commission).¹ In your Requests, you seek various agency records relating in whole, in part, or in tangential relation to, a pending application for a new non-geostationary orbit system filed by Space Exploration Holdings, LLC, aka SpaceX.² For the reasons detailed below, we deny your fee waiver requests. The Space Bureau will separately address any estimated fees and the merits of the FOIA request.

Section 552(a)(4)(A)(iii) of the FOIA provides for the possibility of granting fee waivers only if two factors are met by the requester. The first factor requires the requester to demonstrate that “disclosure of the information is in the public interest because it is likely to contribute significantly to public understanding of the operations or activities of the government.”³ The second factor requires the requester to show that the disclosure of the information “is not primarily in the commercial interest of the requester.”⁴ Section 0.470(e) of the Commission’s rules sets forth the agency’s criteria for granting a fee waiver pursuant to the statutory standard.⁵ The criteria for determining whether the request meets the first factor include:

- (i) Whether the subject of the requested records concerns the operations or activities of the government;

¹ FOIA Control Nos. 2026-000479, 2026-000480, and 2026-000481 (submitted Mar. 17, 2026).

² *Id.* See also *Space Bureau Accepts for Filing SpaceX’s Application for Orbital Data Centers*, Public Notice, DA 26-113 (SB rel. Feb. 4, 2026) (SpaceX Proceeding).

³ 5 U.S.C. § 552(a)(4)(A)(iii); see 47 C.F.R. § 0.470(e)(1).

⁴ *Id.*

⁵ 47 C.F.R. § 0.470(e)(2).

- (ii) Whether the disclosure is likely to contribute to an understanding of government operations or activities; and
- (iii) Whether disclosure of the requested information will contribute to public understanding as opposed to the individual understanding of the requester or a narrow segment of interested persons.⁶

The criteria for determining whether disclosure is primarily in the commercial interest of the requester include:

- (i) Whether the requester has a commercial interest that would be furthered by the requested disclosure; and, if so
- (ii) Whether the magnitude of the identified commercial interest of the requester is sufficiently large, in comparison with the public interest in disclosure, that disclosure is primarily in the commercial interest of the requester.⁷

A requester bears the burden of demonstrating its entitlement to a waiver of fees in “reasonably specific and non-conclusory terms.”⁸ Thus, unsubstantiated assertions or “[s]imply repeating the fee waiver language of [the statute],” are insufficient to obtain a fee waiver.⁹

Taking these factors into account, we deny your fee waiver requests.

Public Interest Factor. With respect to the first factor, we find that your fee waiver requests fail to meet the requirements for multiple reasons.

First, the disclosures are unlikely to contribute to public understanding of the operations or activities of the government. FOIA Request No. 2026-000479 specifically requests records that are already publicly available. Under the subtitle “Category K,” this Request asks the agency to produce “any records required to be made available for public inspection under 5 U.S.C. Section 552(a)(2) that bear on the Commission’s satellite application processing procedures.”¹⁰ The Request expressly notes that “[t]hese are records the Commission is currently obligated to make publicly available.”¹¹ Courts have upheld agency rejection of fee waivers when the requested records are already public because such records are unlikely to contribute anything new to the public’s understanding.¹²

⁶ *Id.*

⁷ 47 C.F.R. § 0.470(e)(3).

⁸ *Nat’l Sec. Couns. v. U.S. DOJ*, 848 F.3d 467, 474–75 (D.C. Cir. 2017) (internal citations omitted).

⁹ 47 C.F.R. § 0.470(e)(1); *see, e.g., Cause of Action v. FTC*, 961 F. Supp. 2d 142, 157 (D.D.C. 2013).

¹⁰ FOIA Request No. 2026-000479.

¹¹ *Id.*

¹² *See Monaghan v. FBI*, 506 F. App’x 596, 598 (9th Cir. 2013) (affirming district court’s dismissal of requester’s challenge to fee waiver denial and observing that requester did not challenge that “portions of the responsive

Second, a substantial portion of the records sought are unlikely to “contribute to an understanding of government operations or activities” because the records have nothing to do with the activities or operations of the government. The entirety of FOIA Request No. 2026-000480 seeks records about former FCC employee (and current SpaceX employee) David Goldman. The fee waiver justification attempts to use David Goldman’s job history as a shoehorn into the “government operations or activities” component of the public interest factor.¹³ But the shoe simply does not fit—a fact that you admit elsewhere in the same document. You state, essentially,¹⁴ that your purpose for seeking records about David Goldman is to help you determine whether “deficiencies” you believe exist in the SpaceX application were deliberate misrepresentations to the Commission.¹⁵ As such, your FOIA requests are designed to shed light on David Goldman and his employer, SpaceX—not the government.¹⁶

Finally, you cannot meet the requirement that disclosure will contribute to public understanding because you fail to demonstrate that the results of your requests for records will be delivered to any meaningful segment of the public. In the various comments you submitted into the SpaceX proceeding, you describe yourself as a Starlink customer who enjoys astronomy and stargazing. Similarly, you describe yourself in the Requests as an individual participating in the SpaceX application proceeding by filing comments with the FCC. The Requests provide no information

documents have previously been released to the public” and finding that their “prior availability makes them unlikely to contribute to public understanding”); *Jud. Watch, Inc. v. U.S. DOJ*, 365 F.3d 1108, 1126-27 (D.C. Cir. 2004) (upholding denial of “blanket fee waiver,” emphasizing that plaintiff failed to counter government’s representations that requested information “was already in the public domain”); *Carney v. U.S. DOJ*, 19 F.3d 807, 815 (2d Cir. 1994) (observing that where records “are readily available from other sources . . . further disclosure by the agency will not significantly contribute to the public’s understanding”).

¹³ See FOIA Request No. 2026-000480 (“The subject of these records concerns the operations and activities of the federal government, specifically the institutional history of a Commission employee who subsequently appeared before the Commission as a representative of the Applicant in proceedings governed by the same regulatory framework he helped develop and administer.”).

¹⁴ Despite the density of the Requests (mirrored in the text of comments you also submitted in the public SpaceX proceeding), it appears that (1) you believe David Goldman submitted erroneous information in SpaceX’s application, and (2) you seek agency records to determine whether these alleged “deficiencies in the certified record” were intentional or merely accidental.

¹⁵ See FOIA Request No. 2026-000480 (“A compelling need exists because the inadvertence question is live in the pending adjudication of ICFS File No. SAT-LOA-20260108-00016. The individual who executed the Form 312 certification for the Application, David Goldman, Vice President of Satellite Policy at Space Exploration Holdings, LLC, served in multiple Commission offices during the period the satellite application processing rules at issue in this proceeding were developed and administered. The Commission cannot evaluate whether the documented deficiencies in the certified record were the product of inadvertence by the certifying official, or whether those deficiencies were certified by an individual whose professional history at the Commission necessarily encompassed familiarity with the requirements the certified record does not satisfy, without the records sought in this request.”)

¹⁶ See *Brown v. U.S. Patent & Trademark Off.*, 226 F. App’x 866, 869 (11th Cir. 2007) (per curiam) (upholding denial of fee waiver because requester failed to adequately explain how requested records were “related to the activities and operations” of agency), *reh’g denied*, 253 F. App’x 924 (11th Cir. 2007); *Jud. Watch, Inc. v. Reno*, No. 00-0723, 2001 WL 1902811, at *10 (D.D.C. Mar. 30, 2001) (upholding agency’s assessment of fees, reasoning that while agency’s response to citizen letters regarding Cuban emigré Elian Gonzales would likely contribute to understanding of agency actions, incoming citizen letters to agency on that topic do not), *summary judgment granted on other grounds*, (D.D.C. Sept. 25, 2001).

about how you will share the disclosed records with any person other than yourself.¹⁷ Accordingly, your waiver request fails to show that you are capable of “disseminat[ing] the disclosed records to a reasonably broad audience of persons interested in the subject.”¹⁸

For these reasons, we deny your fee waiver requests.¹⁹

You may seek review of this determination by filing an application for review with the Office of General Counsel within 90 calendar days of the date of this letter.²⁰ Your appeal must articulate specific grounds for review, identify factors warranting further consideration of the issue presented, and specify the relief being sought.²¹

Sincerely,

**Kristi
Thompson**

Digitally signed by
Kristi Thompson
Date: 2026.03.27
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Kristi Thompson
Attorney Advisor
Office of General Counsel

cc: FCC FOIA Office
FCC Space Bureau

¹⁷ Although you state in your Requests that part of your purpose in seeking records is to continue to participate in the SpaceX Proceeding, mere participation in a public proceeding is not sufficient to demonstrate a capacity to “disseminate the disclosed records to a reasonably broad audience of persons interested in the subject.” *Carney v. U.S. DOJ*, 19 F.3d 807, 815 (2d Cir. 1994). The FCC’s public comment process allows members of the public to make factual arguments and opinions *to the government* in order to participate in agency decision-making. Whereas a journalist or media outlet may disseminate government information to members of the public, here the flow of information is exactly the reverse.

¹⁸ *Carney v. U.S. DOJ*, 19 F.3d 807, 815 (2d Cir. 1994); *Cause of Action v. FTC*, 799 F.3d 1108, 1116 (D.C. Cir. 2015); *Nat’l Sec. Couns. v. U.S. DOJ*, 848 F.3d 467, 474–75 (D.C. Cir. 2017).

¹⁹ We do not reach a determination regarding whether the requests are primarily in the commercial interest of the requester.

²⁰ 47 CFR §§ 0.461(j), 1.7 (documents are considered filed with the Commission upon their receipt at the location designated by the Commission), and 1.115.

²¹ See 47 CFR §§ 0.251(j) (applications for review may be dismissed for failure to articulate specific grounds for review), 1.115(b) (an application for review must specify with particularity the questions presented for review and specify the factor(s) (from an enumerated list) warranting Commission consideration of the questions).